FÉMINISMES DÉCOLONIAUX, GENRE ET DÉVELOPPEMENT

FEMINISM IN INDIA: THE TALE AND ITS TELLING

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Cet article donne un aperçu du féminisme en Inde qui soulève en même temps des questions d'ordre théorique. La théorie postcoloniale ne tient pas compte du fait que ce qui est considéré comme « marginal » pour l'occident a souvent joué un rôle central dans le reste du monde. Privilégiant l'analyse des textes, les études postcoloniales négligent l'analyse historique des contraintes liées aux institutions sociales et des possibilités d'action des individus dans ce cadre. On suivra, sous cet angle, le féminisme à travers l'histoire : de la colonisation anglaise aux affrontements nationalistes et aux conflits de genre ; du développement initié par l'État dans une Inde indépendante aux changements apportés par la mondialisation ; jusqu'à l'Inde contemporaine marquée à la fois par une affirmation des communautés marginalisées et par l'émergence d'une « classe moyenne globale » avec son impact paradoxal sur le féminisme.

Mots clés : Concepts et contextes, historicizing west/non-west, classe moyennes globale, assertions of marginalized communities, théories postcoloniales, féminismes institutionnalisés, contraintes structurelles/agency humaines human agency.

INTRODUCTION: OF CONTEXTS AND CONCEPTS

The task at hand is twofold: *first*, to present a schematic account of feminism in India; *second* to bring up some theoretical and methodological issues entailed in representing it. This decision to problematize the process of narrating has been prompted by the fact that writing in the second decade of the 21st century implies that we take into cognizance some of the developments in the preceding decades that impinge in a very fundamental way on both the practice and theory of feminism. In other words, I seek to flag some of the changing features of the contemporary context within which I as a resident Indian scholar write

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about feminism for Western academia. (i) A rich and complex body of feminist writings has emerged over the last forty years which in many ways have become *institutionalized* within academia[1] as well as within policy making, whether of various states[2] or of international agencies[3]; (ii) the rise of multiculturalism and postmodernism in the West since the 1980s gave way not just recognition but *celebration of diversity and plurality* including that of divergent feminisms; (iii) the rise of *postcolonial studies*, articulated in the writing of non-Western scholars located in the West on one hand and a predilection towards *poststructuralist theory* on the other; (v) finally the greater *visibility of India* and Indian scholarship in the recent decades of globalization. My central contention is that these developments are not extraneous but constitutive of Indian feminism.

As a resident Indian feminist scholar I feel an acute sense of disquiet when what I have to say is readily slotted as yet another instance of burgeoning postcolonial writings, one more voice of diverse feminism. My discomfort is that postcolonial theory principally addresses the needs of Western academia. "What post-colonialism fails to recognize is that what counts as 'marginal' in relation to the West has often been central and foundational in the non-West" (Gandhi, 1998, p. ix). *Thus when I privilege British colonialism and Indian nationalism this is not a belated deference to postcolonial theory but a historical fact which Indians have lived and battled with and one within which the story of Indian feminism emerged and grew.*[4] Further, the theoretical shift to textual analysis that accompanied postmodernism and post structuralism led to a gross neglect of a historical and concrete analysis of the constraints of social institutions and the possibilities of human agency therein.

I start on this note to make a conscious break with concepts in circulation and a current academic propensity, which invokes 'difference' and 'plurality', celebrates 'fragments' in a manner of politically correct mantras without even being fully aware of the complex and concrete historical processes, which produce and perpetuate these differences and inequalities. Social institutions, production relations, individual and group actions (and reactions), retreat

1. Centres for women's studies set up by the Indian Government headed University Grants Commission (UGC) within universities have expanded greatly since the 1980s.

2. The Indian state explicitly brought in questions of gender and development from the 6th Five Year Plan, 1980-1985.

3. The United Nations had declared 1975 as the International Women's Year that began the International Women's Decade. The Indian state appointed a Committee to look into the status of women. 1975 then marked the publication of the landmark volume *Towards Equality* under the stewardship of Dr. Vina Mazumdar. See Mazumdar (2010, pp. 64-102).

4. Does that mean that Indians had no idea of injustices against women prior to their exposure to the West? Certainly not, for women's writings have been in existence in India from the earliest times. What did not exist was the sense that these were socially created injustices and that therefore there ought to be deliberate efforts by the **state** to bring in reforms. Susie Tharu and K. Lalitha's volumes are collections of women's writings in India from the 6th century B.C. that reveal the long legacy (Tharu, Lalita, 1993). What is noteworthy is that the volumes, drawing upon women's writing from so many thousands of years ago, themselves were born only in 1993, at the tail end of the 20th century, a period already inscribed not just by political feminism but institutionalized women's studies – to emphasize the point that I seek to make about contexts and concepts.

from such analysis while attention is focused on discerning 'ruptures' and 'gaps' in either textual representations or oral narratives. These ruptures appear like autonomous 'marks' awaiting discovery from the analyst rather than real, historically existing social contradictions.

In privileging India's colonial past, I am not averring to a simple colonial social constructionist position, nor waving the wand of colonial cartography. I begin with the material and ideological dynamics of colonialism within which Indian feminism emerged and developed – a past that makes its presence felt in some expected and many unexpected, unintended ways as this paper would show. I therefore choose to understand the emergence of feminism in India in the following contexts:

- history of colonialism and emergent Indian nationalism;
- its subsequent advance within the trajectory of independent India's state initiated development;
- more recently within the transformed context of globalization and India's own success story in it;
- and growing assertion of marginalized castes[5] and communities which has led to a complex deepening of the democratization process in India.

While I have often been asked to tell the story of Indian feminism, I have in each instance been acutely aware of the convolution involved. The academic context of knowledge practices within which I write today about Indian feminism for a Western audience is only a part of the complexity. Though Western hegemony is not quite what it used to be, it is not easy to rid ourselves of our 'captive imagination' – a point that was driven home to me almost a decade ago as I struggled to write a conceptual story of feminism in India. I realized:

> "the obvious but often overlooked fact that while, for western feminists whether or not to engage with non-western feminism is an option they may choose to exercise, no such clear choice is available to non-western feminists or anti-feminists. (...) our very entry to modernity has been mediated through colonialism, as was the entire package of ideas and institutions such as nationalism or democracy, free market or socialism, Marxism or feminism. Any question therefore, had to confront the question of western feminism as well..." (Chaudhuri, 2011b, pp. xiv-xv)?

What then is different today? I would argue that while we had a great deal of interaction with the colonial West, *we did not have the kind of increasingly institutionalized global academic interaction which we have today, a world where too often we all appear to speak alike, even when we seek to mark our difference.* The earlier Western ideological influence and the opposition to it were both more powerful and explicitly political. The native was speaking but her voice was outside the deemed legitimate intellectual discourse. It was in the political

5. The **Indian caste system** is a system of social stratification and social restriction in India in which communities are defined by thousands of endogamous communities. Contemporary India is marked by a vibrant assertion of marginalized castes.

sphere of colonial India that social reformers and nationalists sought to make history, sought to articulate a distinct nationalist and feminist identity (though informed of and often inspired by Western visions). Often this expressed itself as a denial. "I am not a feminist" was a statement heard more often than not from major women public figures. My argument has been that "the sheer persistence of this theme has a story to tell". And the story is that ambivalence/evasion can be fruitfully read "both as a claim for difference as well as political strategies of the nationalist and women's movement" (Chaudhuri, 2011b, p. xix). Readers will appreciate that those rough and turbulent struggles of feminist doings in colonial times within which feminism was being theorized were very different from the current, sanitized academic spaces where professionals seek to speak and write, no matter how many times the word 'political' is invoked. No wonder I had *found it impossible to separate the history of action from the history of ideas*, and in an intellectual world so completely subjugated by Western academic norms it took a while to recognize:

> "that feminism *was* being debated, but differently, (...) such attempts at articulating difference were taking place in a context uninformed either by the language of difference or the more recent political legitimacy accorded to it ... concepts which have 'local habitation and name' today and which slide spontaneously to the tip of the tongue and pen ('gender construction,' 'patriarchy', 'empowerment', 'complicity', 'co-option') were couched in different labels a century ago." (Chaudhuri, 2011b, pp. xiii-iv).

My location as a resident Indian is important even in such times of times of globalization. Not only do I have to engage with the West, but a West with an increasing presence of the non-West and a Western academia, where the 'native' has already spoken. Postcolonial scholars of South Asian origin are leading intellectual voices of the non-West in the West, particularly North America. This compounds the matter more, for 'national' contexts do still matter in social sciences and humanities. At another level, many of the issues that at one time appeared to be issues of the non-West are now eminently visible in the West, home to increasing and strident cultural diversity. At one time 'Western-located Indian' feminists decried the fact that Indian feminism was "self effacing", that Indian women see their personal desires as unnecessary and were engrossed with larger questions such as questions of community identity, democratic citizenship, religious beliefs, workers' rights, cultural distinctions, and rural poverty. The question that Western feminisms would ask and we would echo: "Where amidst this din of large issues were the women?".

A decade into the 21st century, the terms of the debate seem to have changed entirely in the West. It seems overtly obsessed with questions of cultural identity, of alien cultures and a realization that choices and selfhoods need not be expressed in the language of the Western individual woman.[6] In a world politically more

6. The 'choice' to wear the veil by Muslim women in the West is the most obvious example.

intolerant than ever, in a Western academia more multicultural than ever, the histories of non-Western feminisms no longer appear extraneous, beside the point, or even lacking the 'authentic' feminist impulse. Almost lurching to the other extreme, voices of non-Western women are now validated in the West. Alternative modes of agencies are being increasingly imagined. I am a trifle wary of the representation of the third world woman either as "victim subject" or as an "alternate agential self" – catch-all terms that reign in postcolonial Western academia. It is in such a context that it may be productive to shift focus to the ground reality of Indian feminist deliberations such as that of the Thirteenth *National Conference of the Indian Association of Women's Studies* (IAWS) 2011, the largest national-level body of Indian feminists. Here we find a context that is far more complex and manifold, and concepts that are far more varied. *In contemporary Indian feminism we thus have issues ranging from*:

- developmental induced displacements to questions of alternative sexuality;
- agrarian crisis to the need to challenge hierarchies of victimhood versus pleasure;
- reproductive health to the question of controlling resources – land, forest and water;
- global capitalism and the localized and diverse articulations of culture to military conflict;
- language, voices representations to new markets and interlocking inequalities;
- rural labour to women in religions;
- starvation to female spectatorship.

The above issues are not exhaustive. They are simply indicative of the unequal and diverse voices **within** contemporary Indian feminism (IAWS, 2011).

Inequalities and diversities define Indian society. Various precolonial social reformer movements, the British state, the nationalist and feminist movement have always had to negotiate with this. Thus British colonialism impacted different regions differently both because of the stage of colonialism as well because of the nature of different regions. Thus there were periods of reluctance on the part of colonial rulers' meddling with India's social customs such as those related to women, for fear of reprisal, and periods of active involvement to intervene such as the abolition of *sati* in 1829[7] or raising the *Age of Consent for Women* in 1863[8] which brought forth a furiously hostile reaction, leading again to a phase where the British preferred to rely more on their conservative allies. What one can however infer is that *colonial rule, the humiliation of*

7. *Sati* is a custom practiced by some dominant Hindu castes in India in which the widow was burnt to ashes on her dead husband's pyre.

8. *The Age of Consent Bill*, passed in 1860, made sexual intercourse with a girl less than 10 years legally a rape and was passed to battle the pernicious practice of child marriage. Efforts to increase the age a few years later generated a fierce debate on the very contemporary question of community versus state rights.

the subject population, the impact of Western education, the role of Christian missionaries, growth of an English speaking Indian middle class all led to an intense and contested debate of the women's question in the public sphere. This debate itself has been scrutinized carefully from different perspectives. We thus have a question on whether the debate on *sati* was about women or about reconfiguring tradition and culture; we have questions on why *Dalit*[9] women's public initiatives and intervention went unwritten about (Rege, 1998); we have arguments that suggest social reforms were more about efforts to introduce new patriarchies than about women's rights and gender justice. *Such rethinking emerges from the challenges posed by social movements and new theorizing emanating from structural transformations within the country.*

The Indian feminist is debating in part within the 'national' context on 'local' issues, even as she is part of the contemporary globalization of academia and of feminist scholarship. That there is such a strong presence of scholars of Indian origin within Western academia who speak for India but within an intellectual world quite distinctively Western, with its own set of empirical and conceptual imperatives, compounds the matter further. Concepts travel thick and fast and are often picked up without any serious engagement with either their contexts or with the theoretical frameworks from which concepts emerge.

Readers will excuse this digression. For I think that, at this present historical juncture where intellectual international exchanges are both intensive and far reaching, one needs to problematize the contexts of production, circulation and reception of intellectual representations. It is necessary therefore to draw attention to the fact that "texts circulate without their context ....and... the recipients, who are themselves in a different field of production, re-interpret the texts in accordance with the structure of the field of reception." (Bourdieu, 1999, p. 221). The concepts with which I seek to tell the tale of Indian feminisms needs historicizing. Further, the theoretical frameworks that have sought to analyze the history of Indian feminisms are themselves products of social movements such as the anti-colonial, the nationalist, the feminist, the left and anti-caste. Simply put, much before the theoretical shift to a language of *difference*, Indian social movements – whether nationalist or feminist – have had to negotiate with both the questions of difference and inequality.

HISTORIES OF FEMINISMS

India is large, diverse and unequal. The stories of feminism are likewise different. What however binds them is a history of a colonial past, despite the

9. *Dalits* are a group of people traditionally regarded as untouchable within the Hindu caste hierarchy. Contemporary India is witnessing an unprecedented rise and spread of the *Dalit* movement.

fact that the spread and impact of colonialism was uneven and differential. And subsequently, almost 65 years of development under a reasonably pro-active Indian state,[10] despite the fact that class, caste, region and gender implications of its policies has not been uniform. It is not surprising therefore that Indian feminist writings have been intersectional from its very inception. My effort here is limited to marking *key moments* in the emergence and growth of the women's movement in India. An attempt to squeeze in so much history in so little space is hazardous. Readers will forgive me for this, and my references to the many scholarly works on feminism and women studies (see John, 2008; Omvedt, 1993; Sangari, Vaid, 1990...) is my way of indicating to the readers sources for further information.

- 1. The women's question was articulated sharply in the *19th century social reform movements* paving the way for the growth of women's writing and voices in the same period;
- 2. Emergence of *women's groups in the early part of the twentieth century* and *political participation* of women;
- 3. *Independence* and the state domestication of the women's question;
- 4. Feminism in the *1970s and 1980s*: resurgence and new contestations;
- 5. Feminism since the *1990s*: a paradigm shift.

The 19th Century Social Reform Movement

India entered modernity and capitalism through colonialism. Nationalism, nation states and feminism have to be understood as part of the modern democratic project. But liberal democracy's relationship with feminism was never simple, as the suffragette movement demonstrated. Equal rights did mean rights for all, but only potentially. In practice it meant that refashioning of households and families led to women being recast as creatures of domesticity, and the housewife[11] came to represent both a full time and natural vocation. Some major aspects in the culture of Victorianism influenced the emergent model of the Indian reformed woman. Some of these can be identified as domesticity and family, respectability, improvement and conventional Christian morality (Chaudhuri, 2011a, p. 17). Indian reformers in turn popularized the new model of domesticated but educated Indian women.

10. The Indian state from its inception in 1947 followed a path of state directed development to address the dual needs of 'growth' with 'equity'. This is often referred to as the Nehruvian approach after the first prime minister of India, Jawaharlal Nehru.

11. An audience of educated men were thus asked whether they did not feel in their daily lives that their mothers and wives were 'great impediments' in the way of their own intellectual and moral improvement (Chaudhuri, 2011a). Reformers thus wanted to devise a system of education for females that would "enable the wife to serve as a solace to her husband in his bright and dark moments... to superintend the early instruction of her child, and the lady of the house to provide those sweet social comforts, idealized in the English word "Home".

Females are not required to be educated by the standard which is adopted for men. Women have but one resource, *Home*. The end and aim of her life is to cultivate the domestic affections, to minister to comfort, and exercise her little supervision over domestic economies (*ibid.*, p. 31).

It was also part of the nineteenth century package of ideas that claimed that the status of a nation ought to be gauged by the status of women. Indians were thus berated for their inability to attain heights as a nation because of the pitiable condition of their womankind. Indian social reformers responded to this challenge and recast ideas of middle class domesticity, much in the line of Victorian England, which defined the normative Indian woman as gentle, refined and skilled in running a 'home'. Along with this, we had a simultaneous assertion of the virtues of an ancient Hindu past and culture or pristine Islamic past, as the case may be. Significantly these were the early years for the beginnings of Hindu and Muslim fundamentalism. Readers will notice that the story here does not begin with 9/11, though in the curious way of globalized history they may get reconnected a century later.

Generations have studied the nineteenth century reform movement as measures to do away with social evils like *sati* and child marriage. The last thirty years have seen a body of work that has explored the social character of the movement critically – the far reaching implications of the fact that the reformers belonged mostly to the upper castes, that they were predominantly male and that the specific problems addressed and the mode of addressing them were very often restricted by region and caste location (Sangari, Vaid, 1989). A more dramatic instance of how this research has made us rethink issues is the case of the *Widow Remarriage Act*, which legally allowed upper caste widows to remarry, but simultaneously through codification of laws obliterated the rights that lower caste widows had traditionally availed of under their customary laws (Chaudhuri, 2011a, pp. 38-41). This is but one example of how gender practices in India were intimately tied to caste, community and region. This is also but one example of how gender practices and norms of the dominant communities became the normative model of the whole 'nation' – a trend that diverse feminist voices have increasingly challenged.

Alongside social reform, a reinterpretation of 'Indian culture' and the special role within it for 'Indian women' took place. In this cultural regeneration are embedded complex ideas of what constitutes culture. Cultural practices often chosen as emblematic of community identity pertain to women's mobility, and control of sexuality, for example child marriage, *purdah*, *sati*. If women are icons of Indian culture, the contentious question in a plural society like India is which of its women and which of its cultures ought to become the 'national' icon. One of the most vexing issues of modern India has been fought over the *rights of community identity versus rights of women and rights of the state*.

Questions of culture, community identity and scriptural sanctions have been very much part of the manner in which the women's question emerged in India. One of the first issues where this comes up is the debate on *sati*. While the *Brahmo Samaj*[12] marshalled enormous *shastric* (textual) evidence to show that *sati* is not mandatory, the *Dharma Sabha*[13] pleaded with the British to disallow those who knew nothing of their customs and religion from speaking, petitioning that "in a question so delicate as the interpretation of our sacred books, and the authority of our religious usages none but *Pundits*[14] and *Brahmins* and teachers of holy lives, and known learning ought to be consulted – not men who have neither faith nor care for the memory of their ancestors or their religion" (Chaudhuri, 2011a, p. 22). The *Age of Consent Bill* that raged through India in the end of the 19th century[15] also asserted the natural and nationalist right of a community to decide when and how to reform, rejecting the right of an alien and unresponsive colonial state[16] to legislate on the private matters of Indians.

Emergence of women's groups and political participation in the early 20th century

The early 20th century saw the rise of many women's organizations. While the concerns of the 19th century reform movement left its mark on the women's question, it is important to emphasize that with the intensification of the national movement and the spread of internationalist ideas of socialism and democracy, the women's question could not be contained within the restrictive parameters of one or other reformers. Women's organisations like the All India Women's Conference (AIWC) and women within the national movement insisted on greater political and economic participation. The legacy of women revolutionaries, trade union activists, and nationalists is as much part of the historical legacy that the independent Indian state inherited. This needs reiteration, for the widespread circulation of Partha Chatterjee's nationalist resolution of the women's question in global academia appears to have truly wiped out the story of political action and resistance of Indian woman (Chatterjee, 1990). This is perhaps a good instance of the limits of textual analysis, where the lure of the conceptual binary of the 'inner' and 'outer', the 'spiritual' and 'material', clearly took precedence over the actual struggles of feminist movements.

12. Raja Ramohun Roy, often seen as the first modern Indian, set up the social reform organization Brahmo Samaj in Bengal in 1828.

13. An orthodox Hindu group who were against any change in customs.

14. Traditional men of learning, who belonged to the 'upper' caste of Brahmins within the Hindu hierarchy of the caste system.

15. The prevailing sentiment can be discerned in the following newspaper writing: "Yes, we are a nation of savages and the government is making laws to educate us. Yes, we are strangers to domestic virtues: ..." *Bangabasi in* Chaudhuri, 2011a, pp. 72-78.

16. The humanitarian concern of the British government was suspect, for the British state had failed to respond to Indians' pleas about drainage of grain in time of famine and the horrific state of indentured labour in distant lands.

The early years of the 20th century marked two important landmarks in the history of the Indian women's movement: the birth of nationwide women's organizations and the beginning of women's participation in the national movement. Certain core ideas surface repeatedly in the proceedings of women's organizations such as the All-India Muslim Ladies' Conference (*Anjuman*) 1914, the Women's India Association (WIA) 1917, the National Council of Women in India (NCWI) 1925, and the All India Women's Conference (AIWC) 1926. A key idea was a belief that advancement of a society hinges on the progress of women. Therefore, it was important how women's organizations helped fashion the right kind of women. The model sought after was a curious mix of the virtues of the good Victorian lady and the pristine Hindu/Islamic woman. A focus on domesticity and family, respectability, improvement and conventional Christian morality permeated deliberations of the *Anjuman*, the WIA and NCWI. The deliberations also reflected the cultural angst, common in the collective conscience of the colonized. To resist the cultural onslaughts of the West and articulate one's own cultural identity it became all the more important to project an image of womanhood, which would symbolize both the strength and distinctiveness of Indian tradition. This search for unsullied symbols of tradition somewhere rested with *purdah*[17], as debates within the *Anjuman* would indicate, and elsewhere with "deification" of Hindu/Indian womanhood as discussed by the WIA[18], Hindu militants[19] and Gandhi[20] (Chaudhuri, 2011a, pp. 108-135).

Such models can be dismissed offhand as constructs of a new patriarchy. That, I argue, would be a gross injustice to history and feminism. While continuous efforts were made to legitimize the changing role of women by invoking "traditions" from the past, *the present had an unerring tendency to, if not break out, then retouch the models fashioned by women and political organizations*. For instance even when reformers sought to introduce women's education to make good, modern, bourgeois mothers, the structural opening up of university education for women brought in its turn the entirely unanticipated entry of women into the public sphere.

Likewise, while there is a ready agreement that nationalist leaders desired women's political participation[21] and that women participated in the national

17. The Anjuman... voiced approval for a type of *purdah* prescribed in the *Shariat*. *Purdah* as observed in India, they argued, was based on custom and was too strict... A new style *burqua*, patterned on Turkish ones, was coming into fashion... (Chaudhuri, 2011a, pp. 116-117).

18. They argued that Hindu philosophical and religious literature incorporated the idea of equality between men and women (*ibid*, p. 121).

19. When Bina Das attempted to shoot the governor of Calcutta she wrote: "My object was to die, to die nobly fighting against this despotic system of government which has kept my country in perpetual subjugation..." (Chaudhuri, *ibid*, p. 29)

20. "If non-violence is the law of our being, the future is with women... Women are the natural messengers of the gospel of non-violence if only they will realise their high state" (*ibid*, p. 130).

21. ...unless women of India work side by side with men, there is no salvation for India... I mean political salvation in the greater sense, and I mean the economic salvation and spiritual salvation also (Gandhi, 1925 cited in Chaudhuri, 2011a).

movement,[22] less accepted is any consensus as to exactly what political participation meant for women and for the nationalist leaders. One view would argue that "even the most cursory examination of women's organized activism from the beginning of the 20th century explodes the myth still being pursued by many, that women's role in the national movement(s) against imperialism was male-dictated and male-manipulated" (Kasturi, Mazumdar, 1994, p. 16). Another, as Mies points out is that "to draw women into the political struggle is a tactical necessity of any anti-colonial or national liberation struggle. But it depends on the strategic goals of such a movement whether the patriarchal family is protected as the basic social unit or not." (Mies, 1980, p. 121). Others argue that the concept of the extended family in Indian culture could extend virtually indefinitely and be used to justify women's concerns beyond the kin group. The metaphor of the extended family certainly assisted middle class women's performance of some public roles through their associations (Minault, 1982, pp. 220-221). Yet others felt that women's political participation "gave the illusion of change while women were kept within the structural confines of family and society" (Jayawardena, 1986, p. 107).

I differ about it being an illusion and contend that active political participation often challenges the boundaries of intended models. And I would not see the question of political participation of women only from the confines of a set of reform ideas. Indian women also had a long history of militant participation in political struggles – in working-class strikes, in peasant rebellions, and in anti-imperialist and democratic movements. It was not simply ideas (important as they were) that led to the Indian National Congress (INC)[23] adopting the Fundamental Rights Resolution in 1931. *This is a methodological point I repeat at different points of this paper, for much feminist research in the current intellectual context often gets imprisoned in a frame of analysis that appears fixed and frozen to a text where 'ruptures' within the text appear as radical discoveries.* Rarely does analysis extend either beyond formulaic textual analysis or ethnographies reduced to invoking of "voices" – whether that of "subject victim", which Ratna Kapur critiques (Kapur, 2002), or of "essential" agential selves (Sarkar, 1997).

Agency and autonomy are always enacted within specific structures of constraints. The relevant point is that structures thereby do get redefined. Sometimes structures resist, as the history of feminism in India tends to show. An instructive example is the effort of nationalist leaders and women activists like Amrit Kaur and Hansa Mehta who objected to the guarantee of religious propaganda and practice in their

22. It was a stirring spectacle, that of tens of thousands of women, who for centuries were chained to the narrow domestic life and whom an authoritarian social system had assigned the position of helots at home, stepping out into the streets and marching with their fellow-patriots in illegal political demonstrations (Desai, 1975, p. 346).

23. INC was the political party that led the anticolonial movement and has been the ruling party at the helm of the Indian state for long periods of time.

debates within the Constituent Assembly. They felt that the term 'propagation' and 'practice' might invalidate future legislation prohibiting child marriage, polygamy, unequal inheritance laws and *untouchability*[24] as these customs could be construed as part of religious worship. Kaur suggested that freedom of religion be limited to religious worship (Chaudhuri, 2011a, pp. 192-194). They had anticipated much of what has taken place since in India, and in the unexpected site of the 21st century West. Today we thus have a Constitution with Article 15 which deals with the Right to Equality. But the constitution also contains articles dealing with other categories of rights, like the Right to freedom of religion, as embodied in Articles 25-28. The question remains: "Can a State which proclaims opposition to discrimination based on sex... permit religious personal laws, which affect the life of women in a basic manner?"

Independence and state domestication of the women's question

India became independent in 1947. India was also partitioned into two sovereign states at the same time – Pakistan and India, which led to unprecedented violence between people who had lived together for generations. Not surprisingly the women's question, so central to colonial India, appeared to retreat from public discourse with independence. *The Hindu Code Bill*[25] was returned repeatedly; a *Committee for Abducted Women* was formed to 'return' abducted women to the 'nation' – (Pakistan or India) to which they belonged. Feminist scholars have etched out the tragic narratives of 'rehabilitation' wherein women's voices were violently brushed aside before the decisions of the state and nation (Butalia, 2000; Menon, Bhasin, 1998).

Thus despite an early acceptance of gender equality in principle in 1931, feminism indeed appeared to have recoiled in the first two decades after independence. The Country Report for the Beijing Women's Conference observed that unfortunately women's political rights were not seriously addressed in independent India's state discourse, where women were primarily understood as recipients of welfare as wives, mothers and daughters. The state documents themselves accept that "while women have often been in the forefront in mass movements, their presence has not been felt strongly in structured decision-making and institutions" (Country Report, 1995, p. 67). This "silence" demands a closer look. It has been variously explained as a natural return to patriarchal everyday norms, a lull after independence, a focus on development of the new

24. In the traditional hierarchical caste (stratification) system, the caste perceived to be at the bottom was treated as 'untouchable' – whose touch was considered as defiling.

25. In 1941 and 1944 the Government of India established a Hindu Law Committee to look into the codification of the various personal laws bearing upon Hindu women. While women's organizations supported the Draft, many opposed it, arguing that it would lead to fragmentation of property and divorce, which would have an adverse impact on society. See Chaudhuri (2011a, pp. 189-190).

nation, or shock in the aftermath of Partition violence. Neither space nor the scope of this paper would allow a more detailed exploration. Yet some of the foundations for feminist possibilities in independent India remained – a fact not irrelevant to understanding the strength and sweep of the second wave of the women's movement in the mid 1970s to which we now move.

FEMINISM IN THE 1970S AND 1980S

The failure of the Indian state to deliver the basic needs of the Indian people led to widespread resistance by workers, peasants, middle class employees. The Indian state responded in 1975 by declaring a state of emergency that took away all civil and political rights of its citizens. Significantly the women's movement in the 1970s emerged along with other left and democratic forces. Readers will notice that it coincided with the second wave of the Western women's movements which did influence the Indian movement. Importantly however, we need to take note of its own national/local contexts. *The issues raised were wide ranging: land rights; nature of development; political representation; divorce laws; custody; guardianship; sexual harassment at work; alcoholism; dowry; rape* (Sen, 1990). For Indian feminism their relationship to the state was both crucial and double edged. While on the one hand women, particularly poor women, faced the violent edge of the state, it is the state that the women's movement sought ameliorative intervention from. From the mid seventies the women's question became central in public discourse. The media increasingly reported on violence against women. The women's movement interrogated the existing laws for dowry and rape. Many of the greatest achievements have been in legal reforms. The Indian women's movement and Indian feminist writings made their presence felt globally – a development not entirely unconnected to the institutional logic of the UN Declared International Year and Decade, and the beginnings of institutionalized women's studies in academia. A quote from Vina Mazumdar, a pioneer women's studies scholar and activist, captures the range of issues that Indian feminism engaged with from the 1970s: "issues of *violence...*, *sexual exploitation...* identification of *complex structures of domination* and their reassertion in new forms in the ideology of revivalist, fundamentalist, communal and ethnic movements...". Similarly, investigations of *peasant women* in the rural economy and of their undiscovered history have prompted new questions and drawn women's studies closer to issues also being raised by *ecological and environmental* movements. Investigations into *women's marginalization and exploitation in the economy, both formal and informal, in the educational process, in communication and media, and also in the political process*, have turned women's studies into one of the *major critics of the pattern of "development"* and the choice of strategies (Mazumdar, 1994, pp. 44 emphasis mine).

Significantly this focus on women in the rural economy and in the unorganized or informal sector[26] brought forth a new conceptualization of 'work' and of the public and private domain. The focus on peasant women and rural society, the language in which the issues are raised is different from the second phase of women's movements in the West. Such an articulation draws strongly from an understanding that 'freedom' of women was linked to broader freedoms for all sections of the people in a society where many were poor and dispossessed. Class mattered, and the peasant and working class woman was seen as the face of the Indian nation and state. This is a vision of India that had strong roots within the nationalist imaginary, drawing often from disparate ideological sources such as Marx and Gandhi. Even before India's independence the Indian National Congress had constituted a National Planning Committee (NPC) in 1938 with one sub committee titled "Women's Role in a Planned Economy" (WRPE) where, even as women, working women were privileged as citizens, and cultural emblems found visible mention (Chaudhuri, 1996). The second phase of Western feminism led to theorizing on capitalism and patriarchy and, increasingly, on norms of heterosexuality. Here too these questions were raised. *What spilled out onto the Indian streets and thereby into theory was the fact that feminist questioning of patriarchy necessarily challenges the state, caste, class, community, region, household, family and marriage. For patriarchy operates through and in these sites.* The exposition on the centrality of the conflict between gender and community rights below seeks to show this intersection.

Sixty years after independence, the fears of India's early feminists that an unqualified right to 'religion' could conflict with gender rights came true. Since the assertion of Hindu Right wing forces from the 1990s, and a hardening of positions among Muslim fundamentalists, there is almost an all round agreement that the *Uniform Code Bill* is best kept away. So far as women are concerned, the questions that persists are: Who decides who speaks legitimately foe a 'community'? Who decides what constitutes the 'culture' of a community? The *Shah Bano* case dramatically brought these questions to the fore. On 23 April 1985, the Supreme Court of India passed a judgment granting maintenance to a divorced Muslim woman Shah Bano, sparking a nation wide controversy. The principal argument put forward by conservative Muslim opinion was that the Muslim Personal Law was based on the *Shariat*, which is divine and immutable. Though sections from the Muslim community defended the judgment, the state was more willing to listen to the voice of conservative spokespersons of the community. *Shahbano* herself was pressurized to denounce the Supreme Court judgment in an open letter: "...this judgment which is contrary to the Quran and the *hadith* and is an open interference in Muslim personal law, I, Shahbano, being a Muslim, reject it and dissociate myself

26. In India a major chunk of labour is in the informal/unorganized sector, which has no labour regulations and social security in place. Some estimates suggest 93% of the total labour force.

from every judgment which is contrary to the Islamic *shariat*. I am aware of the agony and distress which this judgment has subjected the Muslims of India today" (Radiance (*Inquilab*), 1985).

The state passed the Muslim Women's Bill, and the Hindu communal forces saw this move as an appeasement of the state to the minorities. That it was the Muslim women who were at the losing end appeared to strike nobody. The question that arose is, who exactly was the Bill seeking to protect – community leaders, divorced husbands or women? (Pathak, Rajan, 1989) Soon after the Indian state passed the retrogressive Muslim Women's Bill, an eighteen year old Hindu widow *Roop Kanwar* was burnt alive on her husband's pyre in the full gaze of about 3000 spectators on 4th September 1987. These years marked the rise of the right wing Hindu nationalist party, *Bharatiya Janata Party* (BJP). It took a long while and a concerted effort of the women's movement to ensure that the state acted against the crime. It is one of the curious turns in history that just as religious fundamentalism strengthened in the late 1980s, India was on the brink of a new phase in history – introducing new economic reforms to integrate into the global economy and the world of late capitalism that led to serious reconfigurations of feminist discourse.

THE 1990S AND OUR ENTRY INTO THE 21ST CENTURY

Prior to the 1990s, the Indian state visualized a state-led development in alliance with national capital (Chaudhuri, 1996). The 1990s altered this paradigm. Transnational capital and the market acquired ascendancy. This shift reconfigured both class and gender in the developmental priority, and therefore necessarily in the national imaginary. Readers will recall how the Indian working class and peasant women were seen as the face of the nation.

This ideological frame changed. The national iconic representation of the working class and peasant women gave way to the new icons of Brand India – the super rich, the beautiful people of the now growing Beauty Business. The buzzword was 'growth' and the way towards it an 'unbridled market'. Structurally, deregulation was the way forwards. One of the corollaries of this pattern of development was an unprecedented expansion of the *informal sector* wherein a large section of women worked on wretchedly low wages with no security of tenure. Feminists like Mary John and U Kalpagam (1994) have observed how this model has been legitimized by international institutions like the World Bank who have drawn upon feminist scholarship about "the incredible range of tasks poor women perform, their often greater contribution to household income despite lower wage earnings, their ability to make scarce resources stretch further under deteriorating conditions", but through a crucial shift in signification displayed the findings as no longer arguments about "*exploitation* so much as

proofs of *efficiency*" (John, 2004, pp. 247-248). Not surprisingly, a great deal of development gender discourse is now exclusively addressed within the micro credit framework, premised upon the idea that women are efficient managers and can be trusted to repay.

Significantly, while most feminists were critical of the state relegating its commitment to the poor and vulnerable, there were contrary views. Gail Omvedt for instance contends that "being anti-globalisation" has become the correct standard of political correctness and argues that "the only meaningful question is, for a Marxist (or dalit, or feminist) activist, what advances the revolution, that is, the movement towards a non-caste, non-patriarchal, equalitarian and sustainable socialist society?" (Omvedt, 2005, p. 4881) Sections within the *Dalit* movement itself have aggressively projected the need for *dalit* capitalism and globalization as the way forward (Chaudhuri, 2010).

I have already alluded to the rise of the Beauty Business which was closely tied to an unprecedented expansion of the advertising and consumer goods sector, which together recast the Indian woman from the frugal to the profligate spender – in keeping with the changing image of India (Chaudhuri, 2000, 2001). It is impossible to capture the finer contours of the feminist debates in this context. A quick reference to the diverse takes on a major Beauty Contest that was organized in Bangalore in 1997 may capture the key points. The contest was marked by protests by the women's movement against beauty contests on the grounds that "these contests both glorify the objectification of women and serve to obscure the links between consumerism and liberalization in a post-globalization economy". Processions were held in Bangalore with mock 'queens' crowned as 'Miss Disease', 'Miss Starvation', 'Miss Poverty', 'Miss Malnourished', 'Miss Dowry Victim', etc. in order to *highlight the issues of poverty*, and lack of nutrition and health care in the country (Phadke, 2003, p. 4573). Shilpa Phadke, a younger generation feminist, argues in this context that "the focus on women as 'victims' could well serve to erase images of women as subjects with agency, sometimes suggesting that *feminism is a movement devoid of joy*". She further argues that the market rather than the state is better as "a potential turf for negotiation". For "*unlike the state, where the citizen is largely a client, for the market the individual is first and foremost an actor-consumer*. Can the women's movement use the strategies of the market to re-sell itself to a larger audience and reclaim its right to speak on behalf of a larger constituency of women?" (*ibid.*, p. 4575) It is important to reiterate here that many continue to perceive the state and political parties rather than the market or NGOs as responsible for their "basic needs", and they approached either the government agency concerned or political parties when they needed resolution of any problem (Chandhoke, 2005). The great Indian middle class may not need the government, but the vast majority of the poor do. The idea of citizenship as both hegemonic and

potentially liberating has been very central to Indian feminism (Roy, 2005). Into the second decade of the 21st century, Indian feminism is engaged with a whole host of issues – some global, some not.

IN CONCLUSION

The central contention that has informed this paper is that while boundaries (including academic) are increasingly breaking down, there still exist considerable distinctions between the global and local, the West and non West. And here, I am not alluding to any idea of an essential culture, or to notions of pure indigenous concepts, but only to the specificities of history. Western concepts of the state and market, citizen and consumer hold here as much as anywhere else. This paper bears witness to this. What differ are the details that make the stuff of human action and human conceptualization. *The context, within which concepts emerge and the contexts where they travel to, needs enunciation.* Its significance in an increasingly globalized academia cannot be overstated. Hence the focus here is on both the tale and the telling of Indian feminism. No ready conceptual frame of the postcolonial, even less no seductive binary oppositions, no amount of sophisticated readings of textual representations will suffice. Endless invocation of 'voices' and 'agency' will not set free the elusive feminist subject. Careful historical analysis may offer a better understanding of the many achievements and failings of Indian feminism.

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